

		Defendants have not shown these causes of action are so duplicative it would “completely dispose of a cause of action.” (Code Civ. Proc., § 437c, subd. (f)(1).) Nor have Defendants demonstrated there is no triable issue of fact whether the issues raised by Plaintiff interfered with Plaintiff’s right to use and enjoy the Property. The Court DENIES summary adjudication of the sixth cause of action.
7	Troung v. Batalla 2023-0130672 Motion for terminating sanctions - Denied	Defendant’s Motion for terminating sanctions is DENIED. Defendant moved for terminating sanctions on January 29, 2026. The hearing was originally set for May 18, 2026. The Court continued the hearing and ordered Defendant to properly serve Plaintiff. Defendant served the Motion by electronic service only. California Rules of Court rule 2.251(c)(3)(B) provides that self-represented parties “are to be served by non-electronic methods unless they affirmatively consent to electronic service.” Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. There is no indication Plaintiff has affirmatively consented to electronic service. Defendant has not filed a new proof of service. Thus, Defendant has not complied with the Court’s order. Defendant shall give notice.
8	Sheehy v. Chicago Title Insurance Company 2020-01146716 Motion for New Trial	Defendant, Chicago Title Ins. Co.’s motion for new trial is DENIED. Plaintiff’s request for attorney fees is DENIED. The cause of action does not accrue until discovery of the loss that may be incurred if the title is not as represented in the policy.” (<i>Lee v. Fidelity National Title Ins. Co.</i> (2010) 188 Cal.App.4th 583, 599–600. Plaintiff correctly asserts that under case law applying section 339 to title insurance claims, a plaintiff must be aware of facts which would cause them to believe there was a potential loss under the policy. Here, such a discovery would require knowledge not merely of the neighbors’ encroaching porch, but that there was an underlying easement or other legal risk affecting Plaintiff’s title to the property.

		The Court's instruction that "[k]nowledge of an encroachment is not knowledge of an easement" was consistent with applicable law including <i>Lee v. Fidelity National Title Ins. Co.</i> (2010) 188 Cal.App.4th 583, 600; <i>65 Butterfield v. Chicago Title Ins. Co.</i> (1999) 70 Cal.App.4th 1047, 1054; and <i>Overholtzer v. Northern Counties Title Ins. Co.</i> (1953) 116 Cal.App.2d 113, 126. In the absence of California legal authority clearly holding Plaintiff is entitled to fees under (<i>Brandt v. Superior Court</i> (1985) 37 Cal.3d 813, 817) for a post-trial motion such as motion for new trial, the Court declines to award Plaintiff attorney fees for opposing this motion. Defendant shall provide notice.
9	Icon Identity Solutions, Inc. v. Santa Mix, Inc. 2021-0121240 Motion for bifurcation denied. Request for judicial notice granted.	Defendant/Cross-Complainant Santa Mix's motion to bifurcate the trial is DENIED. Icon requests for judicial notice of this Court's rulings on the prior MSJ and a San Diego court's ruling on Santa Mix's motion to bifurcate in that court should be granted as records of the courts of this state under Evidence Code section 452(d). Whether or not to grant a motion to bifurcate is vested in the sound discretion of the trial court and is subject to reversal on appeal only for a clear abuse of discretion. (<i>Grappo v. Coventry Financial Corp.</i> (1991) 235 Cal.App.3d 496, 504.) Bifurcating the trial into a first phase to try the issue of whether Icon and Stratus were licensed does not serve the convenience of witnesses and would require reintroducing key documentation into evidence. (Nicolli Decl., ¶ 6-8.) Numerous witnesses who are based in Chicago would have to travel across the country to California twice if the trial was bifurcated. Further, even if Santa Mix prevails in the first phase, its claims for disgorgement of profits must be addressed it the second phase. Thus, a second phase is necessary no matter the outcome of the first phase. Accordingly, the Court exercises its discretion to deny the Motion. Defendant shall give notice.